

Probate Code section 3401(c)(2). If Petitioner is unable to make such verified attestation, he will need to return to Court to seek alternate payment.

Ruling

After careful examination of the Petition and proposed orders, the Court finds good cause to approve the Petition. Accordingly, the Petition is granted. The Court will execute the Proposed Order Approving Compromise of Minor's Claim lodged on December 17, 2025.

8. 9:00 AM CASE NUMBER: C24-01469

CASE NAME: TIN PHAM VS. ARCK RAMIREZ, JR.

***HEARING ON MINOR'S COMPROMISE**

FILED BY: PHAM, TIN HUU

TENTATIVE RULING:

Summary

Petitioner and Guardian Ad Litem Tin Huu Pham filed on November 13, 2025 a Petition for Approval of Compromise of Minor Minhquan Le Pham's ("Minor") Claim Against Arck Ramirez Jr. ("Petition"). For the reasons stated below, the Court **grants** the Petition

Background

On October 1, 2022, Arck Ramirez Jr., while driving under the influence of alcohol, struck and killed Minor's mother Chung Thuy Thi Le. Petitioner (the decedent's husband) and minor, along with two other of decedant's children (both of whom are apparently no longer minors), sued for wrongful death. Minor Le Pham was not present at the collision. Petitioner avers that Minor will never recover completely from the death of his mother.

At this time, the uninsured motorist policy for the decedent has offered \$100,000. The resolution has the four Plaintiffs evenly distributing that amount, such that Minor would receive \$25,000. The sole deduction is for \$5,000 for attorneys' fees, representing 20%. This amount would be placed into a blocked account for the benefit of the Minor

Ruling

After careful examination of the Petition and proposed orders, the Court finds good cause to approve the Petition. Accordingly, the Petition is granted. The Court will execute the Proposed Order Approving Compromise of Minor's Claim and the Proposed Order to Deposit Funds into a Blocked Account lodged on November 13, 2025.

9. 9:00 AM CASE NUMBER: C24-02090

CASE NAME: LEAH FREEMAN VS. DAVID HUNTER

***HEARING ON MOTION IN RE: MANDATORY INJUNCTION**

FILED BY: HUNTER, DAVID

TENTATIVE RULING:

Defendants and Cross-Claimants filed a Motion for Mandatory Injunction on November 19, 2025. Since then, in a Case Management Conference Statement, Defendants have represented that “All Cross-Defendants have been defaulted and Plaintiff has indicated she will dismiss her case and will then be defaulted from the Cross-Complaint. Cross-Defendants are filing a Request for Court Judgment against the Defaulted Defendants.” The Court received no additional filings relating to this request. Given the procedural posture and recent representations, the Court believes it is highly likely the Mandatory Injunction is unnecessary and so will **deny** it as moot.

10. 9:00 AM CASE NUMBER: C24-02882
CASE NAME: HEATHER ABALOS VS. EDWARD HAMILTON
***HEARING ON MOTION IN RE: LEAVE TO FILE 1ST AMENDED COMPLAINT**
FILED BY: ABALOS, HEATHER

TENTATIVE RULING:

Before the Court is a motion for leave to file a second amended complaint (“Motion”, improperly designated as a motion for leave to file a first amended complaint), filed by plaintiff Heather Abalos (Plaintiff”). Plaintiff seeks to add a claim asserting unlawful noncompete agreements and seeks sanctions from the defendants for not stipulating to the filing of an amended complaint.

For the reasons discussed below, the Court GRANTS Plaintiff’s motion for leave to file a second amended complaint and DENIES the request for sanctions.

Background

On October 25, 2024, Plaintiff, a former employee of McCampbell Analytical, Inc., filed a putative class action against McCampbell Analytical, Inc. and Edward Hamilton (“Defendants”). The lawsuit asserted claims for: (1) failure to pay minimum wages; (2) failure to pay overtime wages; (3) failure to provide meal periods; (4) failure to provide rest periods; (5) failure to reimburse necessary business expenses; (7) illegal waiver of wages owed; and (8) violation of California Business & Professions Code §§ 17200, et seq. On February 3, 2025, Plaintiff filed a first amended complaint, which added a Private Attorney’s General Act (“PAGA”) claim, and sought penalties related to that.

With respect to the instant Motion, Plaintiff now seeks to add a claim relating to an alleged improper non-compete agreement. Plaintiff asserts that additional facts were discovered after further investigation and that they immediately sent an email to Defendants asking to stipulate to the filing of an additional amended complaint. Defendants were unwilling to so stipulate, thus Plaintiff filed the instant motion for leave to file a second amended complaint.

Legal Standard for Motion for Leave to File an Amended Pleading

Code of Civil Procedure section 473, subdivision (a)(1), provides the Court discretion to permit a party to amend its pleadings. There is “a policy of great liberality in permitting amendments to the complaint at any stage of the proceedings, up to and including trial [citations]...” (*Magpali v. Farmers Group* (1996) 48 Cal.App.4th 471, 487.) Leave to amend can be denied where there is “inexcusable